To be argued by:
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New York County Supreme Court Index No. 102436/2012

NEW YORK SUPREME COURT
APPELLATE DIVISION: FIRST DEPARTMENT

In the Matter of

THE NEW YORK CIVIL LIBERTIES UNION,

Petitioner-Respondent

-against-

THE NEW YORK CITY POLICE DEPARTMENT and RAYMOND KELLY, in his official capacity as Commission of the New York City Police Department,

Respondents-Appellants

For a judgment pursuant to Article 78 of the Civil Practice Law and Rules

BRIEF FOR PETITIONER-RESPONDENT

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Dated: New York, N.Y.
October 5, 2016

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PRELIMINARY STATEMENT

At issue in this appeal by the New York City Police Department is its claim that it can withhold from public scrutiny its decisions adjudicating charges that police officers have committed misconduct against civilians, even though details identifying the officers have been redacted from the decisions. The NYPD's effort to conceal these rulings comes at a time when police departments across the country—including the NYPD—are embroiled in an intense public controversy over police misconduct and transparency.

In its Freedom of Information Law request that led to the Article 78 petition underlying this appeal, the petitioner-respondent New York Civil Liberties Union sought ten years of NYPD judicial decisions relating to officers' mistreatment of civilians ("Trial Room Decisions") and related disciplinary orders ("Dispositions of Charges"). After initially invoking section 50-a of the Civil Rights Law, which protects certain law-enforcement personnel records, to withhold both sets of records in their entirety, the NYPD voluntarily produced nearly 750 pages of the Dispositions of Charges with redactions to conceal the identities of the officers. And after the NYCLU filed its Article 78 petition seeking the withheld Trial Room Decisions, the NYPD produced to the lower court sample redacted copies that the court deemed adequate to conceal the identities of the officers.

Notwithstanding this history, the NYPD now argues to this Court the sweeping proposition that, as a matter of law, redaction is unavailable in FOIL disputes that implicate section 50-a of the Civil Rights Law and therefore that any document containing section 50-a material may be withheld in its entirety. This argument runs squarely into this Court's decision in a remarkably similar FOIL dispute between the NYCLU and the NYPD (one seeking redacted versions of NYPD investigative reports into officer-involved shootings). In that case this Court rejected the NYPD's appeal, holding that the department had waived its claim to a section 50-a exemption by producing related documents with redactions and that, even without waiver, redaction allayed any section 50-a concerns (*see New York Civ. Liberties Union v New York City Police Dept.*, 74 AD3d 632 [1st Dept 2010]). That decision forecloses the NYPD's appeal here, as does the decades of Court of Appeals law upon which this Court based its prior ruling.

The release of redacted Trial Room Decisions will provide valuable information to the public about the analysis the NYPD employs in adjudicating claims of police misconduct, while eliminating the personnel concerns animating section 50-a. Because the NYPD's various arguments are without merit, the Court should affirm the Supreme Court decision ordering disclosure of Trial Room Decisions with the approved redactions of personally identifying information.

STATEMENT OF FACTS

The NYPD's presentation of the facts is largely accurate, though it omits or underemphasizes some important points. The NYCLU therefore briefly supplements the NYPD's presentation.

The petitioner-respondent New York Civil Liberties Union is a not-for-profit, non-partisan organization whose mission is to defend civil rights and civil liberties and to preserve and extend constitutionally guaranteed rights to people whose rights have historically been denied (R36-37 [Dunn aff ¶ 2]). Police accountability has long been an issue of major concern to the NYCLU (*id.* ¶ 3).

The NYCLU played a central role in the 1992 creation of the New York City Civilian Complaint Review Board (the "CCRB"), which is an independent City agency charged with oversight responsibility for the New York City Police Department (*see id.*). Since then, the NYCLU has devoted substantial resources to monitoring and reporting about the activities of the CCRB (*see id.* and R43-111 [Dunn aff, exhibit A] [2007 NYCLU report on CCRB and police accountability]).

A primary responsibility of the CCRB is to investigate complaints from civilians of misconduct by uniformed members of the NYPD (R37 [Dunn aff ¶ 5]). In particular, the CCRB investigates complaints of excessive force, abuse of authority, discourtesy, and offensive language (*id.*). In those cases where the

CCRB "substantiates" at least one allegation against an officer, the agency sends the case to the NYPD for possible prosecution and discipline (R37-38 [Dunn aff ¶ 7]).[1]

Once a substantiated case is referred to the NYPD, the department can drop the case, negotiate a plea with the officer, or prosecute the case in the NYPD's internal adjudicatory forum, which is known as the "Trial Room" (R38 [Dunn aff ¶ 9). The Trial Room is overseen by the Deputy Commissioner of Trials, who has jurisdiction over disciplinary matters adjudicated by the NYPD (*id.* [Dunn aff ¶ 10]; 38 RCNY 15-02), and whose office includes judges who act as hearing officers in the Trial Room (R38 [Dunn aff ¶ 10]).

For those cases that go to trial,[2] the Trial Room process closely resembles a conventional trial (R38 [Dunn aff ¶ 12]). The NYPD and the officer are represented by counsel, an NYPD judge presides over the case, counsel make arguments and introduce evidence (including witness testimony), and briefs are

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[1]After the NYCLU filed its Article 78 petition, the CCRB and NYPD entered into a memorandum of understanding about the prosecution of certain CCRB-substantiated cases and issued implementing regulations. Those changes, while significant, do not bear on the issues before this Court.

[2]The parties disagree about the number of CCRB-substantiated cases that go to trial, with the NYCLU believing a relatively small number go to trial, and the NYPD contending that far more cases go to trial (*compare* R38 [Dunn aff ¶ 11] [relying on CCRB reports that report the following number of trials: 2011: 17; 2010: 14; 2009: 20; 2008: 19; 2007: 11] *with* R231 [verified answer ¶ 47] [estimating that there are 420 responsive Trial Room Decisions]).

filed (*id.*; *see also* 38 RCNY 15-03, 15-04 [describing pre-hearing and hearing procedures]). Pursuant to regulations promulgated by the NYPD, Trial Room hearings are open to the public (*see* 38 RCNY 15-04[g]; R38 [Dunn aff ¶ 12]).

After the hearing is concluded, the judge issues a draft written opinion that "consist[s] of a summary and analysis of the testimony, recommended findings of fact and conclusions of law, and recommendations for the disposition of the Charges and Specifications" (38 RCNY 15-06[a][2]). After the officer's counsel is given an opportunity to comment on the draft, the police commissioner reviews the materials and makes a final disposition in the case (R39 [Dunn aff ¶ 14]; 38 RCNY 15-08[a]).

This process ultimately results in two documents. One is a final version of the Trial Room decision approved by the police commissioner (the "Trial Room Decision") (R39 [Dunn aff ¶ 14]; *see also* R151-54 [Dunn aff, exhibit D] [sample Trial Room Decision in final form and bearing the police commissioner's signature]).[3] The second is a "Disposition of Charges," which contains information about the officer, the charges being adjudicated, the name of the Trial Room judge, whether the officer was found guilty, and any final discipline imposed on the officer (*see* R39 [Dunn aff ¶ 14]; *see* R156-57 [Dunn aff, exhibit E] [sample

[3] In a small percentage of cases (upon information and belief less than 10%), the police commissioner does not adopt the decision of the trial judge in full, resulting in an amended final decision (R39 [Dunn aff ¶ 16]).

Disposition of Charges]).

The NYCLU has long been interested in learning of the legal and factual bases on which the police commissioner disposes of CCRB-substantiated cases that proceed to trial (R39-40 [Dunn aff ¶ 17]). To take just one example, the NYCLU wishes to see the legal analysis used by the department to assess substantiated cases about stops and frisks (*id.*). The NYCLU has been deeply involved in stop-and-frisk issues, and complaints about stop-and-frisk have been among the most common type of complaint received and substantiated by the CCRB (*id.*). Accordingly, the NYCLU, as well as the public in general, has a strong interest in knowing the contents of final Trial Room Decisions and related Dispositions of Charges.

ADMINISTRATIVE PROCEEDINGS

On August 17, 2011, the NYCLU served a FOIL request on the NYPD seeking:

> "1. Copies of all final opinions, dated from January 1, 2001 to present, from the department trial room (Deputy Commissioner of Trials) adjudicating charges and specifications arising out of cases in which the CCRB has substantiated charges against a member of the department. By final decisions, I am referring to versions of opinions actually adopted by the Police Commissioner as opposed to recommendation decisions (or so-called Fogel drafts). I assume these final decisions are readily available from the Deputy Commissioner of Trials or from the Department Advocate's Office.

> 2. Copies of documents identifying the formal and final discipline imposed in conjunction with each decision encompassed within request 1 above."

(R159 [Dunn aff, exhibit F] [Letter from Christopher Dunn to Thomas P. Doepfner, Aug. 17, 2011]). On September 21, 2011, the NYPD denied the NYCLU's request in its entirety (*see* R161 [Dunn aff, exhibit G [Letter from Sgt James Russo to Christopher Dunn, Sept. 21, 2011]). As a basis for the denial, the NYPD invoked three FOIL exemptions, including section 50-a of the Civil Rights Law (*id.*).

On October 20, 2011, the NYCLU administratively appealed the blanket denial, contending that the NYPD had not adequately supported the claimed exemptions and that the NYPD could use redaction to remove any protected material from the responsive documents (*see* R163 [Dunn aff, exhibit H [Letter from Christopher Dunn to Jonathan David, Oct. 20, 2011]).

On December 15, 2011, the NYPD granted in part and denied in part the NYCLU's administrative appeal (*see* R167-69 [Dunn aff, exhibit I [Letter from Jonathan David to Christopher Dunn, Dec. 15, 2011]). The NYPD granted the appeal with respect to the second category of requested documents, those "identifying the formal and final discipline imposed in conjunction with each [Trial Room] decision" and agreed to produce those "Dispositions of Charges"

documents with redactions (R168-69 [*id.* at 2-3]). The NYPD denied the appeal with respect to the first category of requested documents, the final Trial Room Decisions, and cited the same three exemptions it invoked in the Initial Denial plus a fourth, section 87(2)(e) of the Public Officers Law, which permits withholding of certain law enforcement records (*id.*).

The NYPD subsequently produced 747 pages of Dispositions of Charges connected to the Trial Room Decisions it withheld (R227 [verified answer ¶ 34]). Those Dispositions of Charges were produced "with identifying details redacted" (*id.*).

LOWER COURT PROCEEDINGS

The NYPD's description of the proceedings below (*see* brief for respondents-appellants at 10-13) is sufficient to render unnecessary a separate presentation by the NYCLU, but one point bears repeating. When the Supreme Court denied the NYPD's motion to dismiss, it directed the department to attempt to redact a sample of five Trial Room Decisions "to remove anything to identify the subject of the complaint" (R13 [*NYCLU v NYPD*, 102436/12 [Sup Ct, NY County Oct. 9, 2012] [order denying motion to dismiss]]). The NYPD then redacted the five decisions "to remove identifying details such as the names, height, weight, religion, and profession of complainants, officers, and witnesses;

any exact dates and locations, officer assignments; and car makes and models" (brief for respondents-appellants at 11 [citing R233[verified answer ¶¶ 57, 61]]). In addition to serving those redacted decisions on the five officers, the NYPD also submitted them to the lower court, which reviewed them *in camera* and issued a ruling finding those redactions to be "adequate" (R15 [*NYCLU v NYPD*, 102436/12 [Sup Ct, NY County July 29, 2014] [order approving redactions]]).

ARGUMENT

I. THE NYPD ARGUMENT THAT THIS COURT SHOULD REVERSE THE SUPREME COURT BECAUSE SECTION 50-a BARS PRODUCTION OF REDACTED TRIAL ROOM DECISIONS IS WITHOUT MERIT.

On appeal the NYPD devotes most of its brief to two issues bearing on section 50-a of the Civil Rights Law.[4] First, the department contends that Trial Room Decisions are confidential "personnel records" within the meaning of section 50-a, notwithstanding the fact that those decisions arise from proceedings that are completely open to the public (*see* brief for respondents-appellants at 13-22). The NYPD then asserts that production of even redacted versions of the Trial Room Decisions is not permissible because, according to the NYPD, redaction is not available to courts as a matter of law when resolving FOIL disputes that

[4]This section of the Civil Rights Law creates a FOIL exemption by virtue of section 87(2)(a) of FOIL, which exempts from disclosure documents exempted by other state statutory provisions.

implicate 50-a materials (*see id.* at 22-32).

The NYCLU starts with the second question about the availability of redaction, as resolution of that question readily disposes of this appeal. And the NYPD's redaction position is foreclosed for three different reasons, all emanating from this Court's earlier ruling in *NYCLU v NYPD* (74 AD3d 632 [1st Dept 2010]).

A. The NYPD's Arguments About Redaction Were Waived, Have Been Rejected by this Court, and Are Without Substantive Merit.

1. The NYPD Has Waived the Redaction Argument.

The NYPD waived its argument that redaction is not permitted for section 50-a materials when it itself resorted to redaction when it produced to the NYCLU as part of this FOIL dispute the Dispositions of Charges that accompany the Trial Room Decisions it is withholding. When it chose to utilize redaction in producing the Dispositions of Charges, the NYPD expressly recognized it was doing so with respect to documents it asserted were covered by section 50-a:

> "The second request stated in the August 17, 2011, letter was for copies of records containing the 'formal and final discipline' that was actually imposed 'in conjunction with each decision encompassed within' the [request for Trial Room Decisions]. The appeal from the denial of the second request is granted to the extent that the information requested will be provided in redacted form. The names and identifying information of the subject members of the service and of complainants, as well as the precise location of the underlying incidents, will be redacted based on the applicability of CRL § 50-a(1) and POL §§ 87(2)(a), (b), and 89(2), which protect the confidentiality of these police officer

> personnel records and the privacy interests of the complainants and of the officers."

(R168 [Dunn aff, exhibit I] [Letter from NYPD Records Access Appeals Officer Jonathan David to Christopher Dunn, Dec. 15, 2011]). Having voluntarily produced 747 pages of section 50-a materials with redactions it itself made (samples of these materials can be found at pages 198-207 of the record), the NYPD cannot now turn around and argue to this Court that redaction is unavailable as a matter of law in FOIL disputes involving section 50-a materials.

In this respect, this case is indistinguishable from the earlier dispute between the NYCLU and the NYPD. There, the NYCLU sought redacted versions of investigative reports into officer-involved firearms discharges; the NYPD refused to produce those reports where officers had fired and missed their intended targets but voluntarily produced redacted versions of reports where officers had hit their target (*see NYCLU*, 74 AD3d at 632). In rejecting the NYPD's appeal in that case, this Court held that by virtue of the production of one category of redacted reports "respondents affirmatively waived their right to claim FOIL exemptions in the requested data" (*id*. [citation omitted]). That ruling applies equally here, and the NYPD waived its argument that redaction is unavailable for section 50-a materials when it chose to redact section 50-a materials and voluntarily produce them to the NYCLU in this dispute.

2. This Court Has Already Rejected the NYPD's Redaction Argument.

Beyond waiver, the earlier *NYCLU v NYPD* ruling is significant because in that case this Court rejected on the merits the very same argument with the very same cases the NYPD is now making and citing about the unavailability of redaction in FOIL disputes about section 50-a materials. Just as it does here (*see* brief for respondents-appellants at 23-30), the NYPD in the earlier case placed great weight on the 1982 decision in *Short v Board of Managers of Nassau County Medical Center* (57 NY2d 399 [1982]) and on *Karlin v McMahon* (96 NY2d 842 [2001 mem]) and also invoked this Court's decision in *New York Committee for Occupational Safety and Health v Bloomberg* (72 AD3d 153 [1st Dept 2010]) (*see* brief for respondents-appellants in *NYCLU v NYPD*, 74 AD3d 632, available at 2010 WL 8899212, **22-24 [Mar. 22, 2010]; reply brief for respondents-appellants in *NYCLU v NYPD*, 74 AD3d 632, available at 2010 WL 8899214, **10-14 [May 6, 2010]). In response, the NYCLU argued that these cases were inapposite and that the redaction issue was controlled by various post-*Short* Court of Appeals decisions, including *Daily Gazette Company v City of Schenectady* (93 NY2d 145 [1999]) (*see* brief for petitioner-respondent in *NYCLU v NYPD*, 74 AD3d 632, available at 2010 WL 8899213, **14-21 [Apr. 21, 2010]).

After this briefing and after oral argument, this Court rejected the NYPD's

position that redaction was not available in section 50-a disputes and in doing so relied on *Daily Gazette*:

> "Even were we to find that there was no waiver, the record nonetheless demonstrates that the reports can be redacted to adequately protect their confidential nature (*see Matter of Data Tree, LLC v Romaine*, 9 NY3d 454, 464 [2007]; *Daily Gazette Co. v City of Schenectady*, 93 NY2d 145 [1999])."

(*NYCLU*, 74 AD3d at 632). Simply put, this Court already has considered and rejected the very argument the NYPD is attempting to make in this case.

3. Rulings from the Court of Appeals Establish that the NYPD's Redaction Argument Is Wrong As a Matter of Law.

Even if it had not waived the argument and even if one were to ignore this Court's earlier ruling in *NYCLU v NYPD* (as the NYPD does in its brief in this case), the NYPD's argument that courts cannot deploy redaction in FOIL cases involving section 50-a cannot be squared with decades of rulings from the New York Court of Appeals, most notably the *Daily Gazette* case upon which this Court relied in the earlier *NYCLU v NYPD* case. As the NYCLU explained in its briefing in the earlier case, those Court of Appeals rulings emphasize the importance of redaction in FOIL disputes generally and specifically endorse its use in disputes involving section 50-a materials.

FOIL permits an agency to deny public access to "records or portions thereof" (Public Officers Law § 87[2] [emphasis added]). In a series of FOIL cases

decided since 1984 (including one involving the NYPD), the Court of Appeals has held that responsive records cannot be withheld entirely because they contain some exempt information and instead that redaction must be used (*see Washington Post Co. v New York State Ins. Dept.,* 61 NY2d 557, 567 [1984] ["That some portions of the records may be entitled to exemption does not warrant withholding the minutes completely."] [citation omitted]; *Xerox Corp. v Town of Webster*, 65 NY2d 131, 133 [1985 per curiam] ["To the extent the reports contain 'statistical or factual tabulations or data' or other material subject to production, they should be redacted and made available to appellant."] [citation omitted]; *Gould v New York City Police Dept.*, 89 NY2d 267 [1996] [holding that NYPD had to produce redacted complaint reports given inclusion of unexempt factual information in those reports]).

Three years after applying redaction to NYPD documents in *Gould,* the Court of Appeals expressly endorsed redaction with respect to personnel records under section 50-a. At issue in *Daily Gazette Company v City of Schenectady* were documents about disciplinary actions taken against members of the Schenectady Police Department because of their alleged involvement in an egg-throwing incident (*see* 93 NY2d 145, 152 [1999]). In denying a FOIL request for the documents, the police department asserted the documents were exempt from

disclosure under section 50-a (*id.*).

In analyzing this claim, the Court of Appeals first explained that all personnel records are not necessarily exempt. Rather, in light of section 50-a's goal of protecting police officers from abuse, the exemption applies only to the extent the agency "demonstrate[s] a substantial and realistic potential of the requested material for the abusive use against the officer" (93 NY2d at 159). Moreover, given that goal, the Court expressly endorsed redaction as a way of allowing the production of documents while shielding officers from potential abuse:

> "[D]isclosure for uses that would not undermine the protective legislative objectives could be attained either by a restrictive formulation of the FOIL request itself, or through redaction by the agency having custody of the records, tailored in either case so as to preclude use in personal attacks against an officer which Civil Rights Law § 50-a was enacted to preclude."

(93 NY2d at 159 [emphasis added and citations omitted]).

It is this ruling in *Daily Gazette* that disposes of the NYPD's claim that redaction is not available in FOIL disputes involving section 50-a, as this Court recognized in the earlier *NYCLU v NYPD* case (*see* 74 AD3d at 632 [citing *Daily Gazette* in holding that redaction was appropriate in FOIL dispute involving section 50-a materials]).

Nonetheless, as it did in the earlier case before this Court, the NYPD argues here that redaction is categorically unavailable in section 50-a cases, and in so

arguing relies on the Court of Appeals rulings in *Short v Board of Managers of Nassau County Medical Center* (57 NY2d 399 [1982]) and *Karlin v McMahon* (96 NY2d 842 [2001 mem]) (*see* brief for respondents-appellants at 23-27). The short answer to this reliance is that *Short* was decided in 1982 before the Court of Appeals cases upon which the NYCLU relies and plainly does not survive those subsequent decisions. As for *Karlin*, it is a short memorandum opinion focusing on a wholly different statute, Civil Rights Law section 50-b, which shields the anonymity of victims of sex offenses and which provides stronger confidentiality protections than section 50-a using completely different statutory language (*see* 96 NY2d at 843; Civil Rights Law § 50-b[1]).

Here, allowing the release of Trial Room Decisions with redactions for the identifying information about the officer would best serve the government-accountability purpose of FOIL by allowing the NYCLU and the public to learn important information about the legal and other analyses being used by the NYPD to adjudicate claims of officer mistreatment of civilians. For instance, if it were true that the NYPD was using completely erroneous legal standards in assessing stop-and-frisk charges, that would be revealed. Or if it were true—as there is good reason to believe[5]—that the NYPD refuses to make credibility determinations

[5]*See Floyd v City of New York*, 959 F Supp 2d 540, 618 (SD NY 2013) ("[I]f the CCRB bases its findings on a credibility determination in favor of a witness and against a police officer, (continued...)

when cases turn on conflicting testimony between officers and civilian victims, that would be revealed. Without delving into a comprehensive list, much of value may be learned from the Trial Room Decisions that is completely independent of the identity of individual officer, all of which would be lost if—as the NYPD argues—the presence of any section 50-a material in a document rendered it categorically exempt.

B. The NYPD Trial Room Decisions Are Not Confidential Personnel Records Covered by Section 50-a.

Though the Court need not reach the issue to affirm the Supreme Court's order, the NYPD has also failed to meet its burden of establishing that the Trial Room Decisions even qualify as confidential personnel records protected by section 50-a. The problem for the NYPD is that the information in the Trial Room Decisions about police officers—the information that section 50-a ostensibly protects—simply is not confidential. Rather, it is undisputed that the factual information contained in those decisions comes from proceedings that are fully open to the public (*see* R38 [Dunn aff ¶ 12]; brief for respondents-appellants at 7 ["The charged officer has the right to a hearing, which . . . is open to the public."]), which means that the subject officers are publicly identified by name and the details of their alleged misconduct are spelled out.

[5](...continued)
the [NYPD Department Advocate's Office] will *as a rule* reject the CCRB's findings.").

That the factual information about the officers already is in the public realm bears directly on whether Trial Room Decisions are covered by 50-a because the Court of Appeals established in *Daily Gazette* that section 50-a applies only to personnel records that, if made public, would expose a police officer to potential abuse (*see* 93 NY2d at 158-59 [explaining that an agency "opposing disclosure of officers' personnel records carries the burden of demonstrating that the requested information falls squarely within [section 50-a]," which "means that the agency must demonstrate a substantial and realistic potential of the requested material for the abusive use against the officer"] [citation omitted]). Because the factual information about police officers contained in the Trial Room Decisions already has been presented in open court, the release of the Trial Room Decisions would not further expose officers to potential abuse. Given this particular situation, Trial Room Decisions simply do not meet the Court of Appeals' potential-for-abuse standard to qualify records for the protections of section 50-a.

To be sure, Trial Room Decisions do contain some information not presented in open court and not included in the disciplinary orders that the NYPD has produced, namely the legal analysis of the NYPD judge adjudicating the misconduct charges. But it's hard to understand why that legal analysis would be protected by section 50-a, and the NYPD nowhere argues that it is. And that legal

analysis is of particular interest to the NYCLU (*see* R39-40 [Dunn aff ¶ 17]).[6]

What the NYPD does argue is that the Court of Appeals ruling in *Newsday v Sise* (71 NY2d 146 [1987]) establishes that the applicability of section 50-a to the records at issue here is unaffected by the fact that the information at issue already is readily available to the public (*see* brief for respondents-appellants at 19-20). But that case, which had nothing to do with section 50-a, does not support the NYPD's argument. First, the statute at issue in *Sise*—Judiciary Law section 509(a)—categorically "exempted all information contained in [jury] questionnaires regardless of its nature and the possible effect on privacy or safety interests which disclosure might cause" (71 NY2d at 152 [emphasis in original]), which stands in stark contrast to 50-a's more limited protections, which only apply to records "considered confidential" and which require "a substantial and realistic potential of the requested material for the abusive use against the officer" (*Daily Gazette*, 93 NY2d at 152, 159). Second, the Court in *Sise* also noted that the records sought pursuant to FOIL contained many more confidential facts regarding jurors' private lives than the limited information disclosed during public voir dire proceedings (*id.* at 153 [noting, for example, that "in voir dire, the home addresses of the jurors

[6]Any effort by the NYPD in reply to suggest that Trial Room Decisions contain factual information about officers not disclosed in open court would require the NYPD, which carries the burden on this issue, to point to evidence in the record in support of that suggestion. The NYCLU is unaware of any such record evidence.

were not disclosed"]), whereas here the facts that appear in the Trial Room Decisions were all introduced into evidence during the public proceeding.

As for the NYPD's various arguments about the "logic" and "history" of section 50-a (*see* brief for respondents-appellants at 20-22), the NYCLU is not entirely clear about the proposed import of those arguments. Suffice it to say, however, that the NYCLU's contends that it makes no sense to suggest that a police agency can invoke section 50-a to withhold documents containing information about police officers and their mistreatment of civilians when those documents are reporting information presented in a public proceeding. And the NYCLU notes that the NYPD identifies not a single decision holding that section 50-a applies to information that already has been made available to the public.

II. THE NYPD'S ARGUMENTS ABOUT THE FEASIBILITY OF REDACTIONS, THE SCOPE OF THE LOWER COURT'S ORDER, AND SERVICE ON INDIVIDUAL POLICE OFFICERS ARE WITHOUT MERIT.

Beyond the issues involving section 50-a, the NYPD offers three nonsubstantive arguments about the feasability of redaction, the scope of the lower court's order, and the asserted need to notify other officers. These arguments all are without merit.

A. The NYPD Has Not Shown that Redaction Is Not Feasible.

The NYPD asserts that redaction would not be "feasible," by which it seems

to mean to suggest that redaction is not possible and therefore might be a basis for dismissing the NYCLU's petition (*see* brief of respondents-appellants at 30-32). The Court should reject this.

Whether redaction is feasible or not for a particular set of documents is a factual issue, and nothing in the record supports the NYPD's assertion, as is apparent from its failure to cite to any such support (*see id.*).[7] The NYPD's feasability assertion is just an assertion by counsel that is belied by what happened in the lower court.

Proceedings in the lower court make clear that not only is redaction feasible, it has been accomplished. As noted above, when the Supreme Court denied the NYPD's motion to dismiss, it directed the department to attempt to redact a sample of five Trial Room Decisions "to remove anything to identify the subject of the complaint" (R13 [*NYCLU v NYPD*, 102436/12 [Sup Ct NY County Oct. 9, 2012] [order denying motion to dismiss]]). The NYPD then redacted the five decisions "to remove identifying details such as the names, height, weight, religion, and profession of complainants, officers, and witnesses; any exact dates and locations, officer assignments; and car makes and models" (*see* brief for respondents-appellants at 11 [citing R233 [verified answer ¶¶ 57, 61]]). The NYPD then

[7]The only citation in this section of the NYPD's brief is to "R. 212 ¶ 11" (*see* brief of respondents-appellants at 31), and that cited paragraph says nothing about the feasibility of redaction.

submitted the proposed redactions to the lower court, which reviewed them *in camera* and issued a ruling finding the redactions to be "adequate" (R15 [*NYCLU v NYPD*, 102436/12 [July 29, 2014] [order approving redactions]]). This sequence forecloses any unsupported claim by NYPD's counsel in its brief that redaction is not feasible, much less not possible.

B. No Basis Exists for this Court to Construe the Supreme Court's Decision to Apply to Only Five Trial Room Decisions.

The NYPD also argues that the lower court's rulings are unclear and that this Court should construe those rulings to require the production of only the five decisions the NYPD redacted and submitted to the Supreme Court for review and approval (*see* brief for respondents-appellants at 33-35).[8] There is nothing unclear, however, about the lower court's rulings requiring the production of redacted versions of all responsive Trial Room Decisions (*see* R17 [*NYCLU v NYPD*, 102436/12 [Oct. 2, 2014] [order deeming NYPD redactions adequate and stating "[a]ll future requests are to be done as the five in camera submissions to this court"]). And the NYPD's claim that the Supreme Court "refused to clarify things" (brief for respondents-appellants at 34) is simply wrong, as the court made it clear that it viewed the existing orders as requiring production of all responsive Trial

[8]As noted above, there is a dispute about how many Trial Room Decisions are implicated by the NYCLU's request, with the NYCLU believing that the total number is less than 100 and the NYPD claiming that there are several hundred decisions (*see* n.2, *supra*).

Room Decisions (R262-67 [tr at 5-10 [Apr. 21, 2015]]).

Nonetheless, if the NYPD has questions about how to interpret the scope of the lower court's orders, it should present that issue to the lower court. At this point, there is no issue properly before this Court about the scope of the lower court's order.

C. No Basis Exists to Remand this Matter So Other Officers Whose Trial Room Decisions Are at Issue Can Be Given an Opportunity To Be Heard.

Finally, the NYPD argues that, in the event this Court determines that all of the Trial Room Decisions should be released to the NYCLU, the Court must remand with instructions to serve notice on every "affected officer" mentioned in those opinions (brief for respondents-appellants at 35). This argument misses an essential point: once redacted, the Trial Room Decisions have been scrubbed of material protected by section 50-a and therefore no longer trigger the procedural requirements urged by the NYPD. One court recently spelled out this exact logical point in *Gallogly v City of New York* (51 Misc 3d 296 [Sup Ct NY County 2016]), where the court ordered the release of material that "it is clear . . . may be considered personnel records" but determined that the "[r]edaction of the names and any identifying information of . . . officers obviates the need for affording them notice" pursuant to 50-a (*id.* at 301, 301 n 6; *see also NYCLU v NYPD*, 74 AD3d at 632 [affirming release of shooting reports without mentioning notice to

officers and noting that "the reports can be redacted to adequately protect their confidential nature"]; *Beyah v Goord*, 309 AD2d 1049, 1052 [3d Dept 2003] [ordering release of corrections officer training records, with redactions to protect privacy, without mentioning procedural requirements]).[9]

As for the cases cited by the NYPD where officers were found to be necessary parties to FOIL proceedings pursuant to section 50-a or CPLR 1001, none involved redacted identities, and all are distinguishable in other significant respects. In *Telesford v Patterson*, for example, unlike here, the FOIL requests concerned a specific named officer, and the information sought had not already been publicly disclosed (27 AD3d 328 [1st Dept 2006]). Similarly, in *Dunnigan v Waverly Police Department*, the Third Department found joinder to be mandatory only after it assumed that the records at issue were protected by 50-a and noted that the FOIL request focused on the confidential discipline records of a specific named officer (279 AD2d 833, 834 [3d Dept 2001]). Also inapposite is *Hearst Corporation v New York State Police*, in which the Third Department considered

[9]While redactions make the point redundant, the NYCLU also notes that, as discussed in the prior section of this memorandum, the NYPD has failed to establish that any material in the Trial Room Decisions is in fact protected by section 50-a. Where agencies have not demonstrated that records were "personnel records" exempt under section 50-a, courts routinely order disclosure of those records pursuant to FOIL without mention of notice or joinder requirements (*see e.g. Capital Newspapers Div. of Hearst Corp. v City of Albany*, 15 NY3d 759, 761 [2010] [affirming order to release gun tags, which were not covered by 50-a, without mentioning notice requirements or joinder of officers]; *Beyah,* 309 AD2d at 1051 [ordering disclosure of officer interviews because they were not exempt pursuant to 50-a without mentioning notice or joinder requirements for officers]).

an officer who had been specifically named as the target of a FOIL request seeking material that might be found to be protected by 50-a upon remand; even then, the court left open the possibility that "the proceeding should be permitted to proceed in his absence" (109 AD3d 32, 37 [3d Dept 2013]).[10] None of these cases is factually similar to the present case, and certainly none came close to mandating the joinder of hundreds of unknown officers whose identifying information had been redacted to avoid implicating them in the first place.

CONCLUSION

For all the foregoing reasons, the petitioner-respondent New York Civil Liberties Union urges the Court to affirm the ruling below.

[10]The other case cited by the NYPD, *Smith v New York State Off. of the Attorney Gen.* (110 AD3d 1201 [3d Dept 2013]), is completely inapposite. It involved neither 50-a nor any alleged personnel records but rather focused on a FOIL request targeted at Elliot Spitzer's private email account seeking documents that had been previously denied the petitioner in the context of a civil enforcement action motion to compel (*id.* at 1202-03).

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Dated: New York, N.Y.
October 5, 2016

PRINTING SPECIFICATIONS STATEMENT

The brief was prepared with WordPerfect using 14-point Times New Roman font for the body text and 12-point Times New Roman font for footnote text. According to the WordPerfect program, the portion of the attached brief that subject to section 600.10(d)(1) totals 6820 words.

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Dated: New York, N.Y.
October 5, 2016